

Phool Singh v. State of U.P. — recovery citation relegated to Code 6.14

High Court of Judicature at Allahabad · Division Bench · 2 August 2018 · WRIT - C No. 25861 of 2018 · **Writ disposed; petitioner directed to apply under Code 6.14.**

HEADNOTE

Without examining a demand notice and recovery citation for electricity dues, or an alleged one-time settlement deposit, the High Court disposed of the writ by directing the consumer to apply under clause 6.14 of the U.P. Electricity Supply Code, 2005 within 15 days; any such application is to be decided by a reasoned speaking order within 30 days of presentation of a certified copy of the order.

FACTUAL SUMMARY

Phool Singh challenged a demand notice and recovery citation dated 27 April 2018 issued by the electricity department for Rs 80,025. He asserted that under a one-time settlement arrived at with the department he had already deposited the dues, yet he remained willing to pay if granted easy instalments. Counsel for the department submitted that an alternative remedy lay under clause 6.14 of the Electricity Supply Code, 2005, and that any application so moved would be entertained.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

instalment facility / alternative remedy

HOLDING

Where a consumer challenges a demand notice and recovery citation and seeks instalment relief (including after an alleged one-time settlement), the writ court will not decide the merits and will relegate the consumer to apply under clause 6.14 of the Electricity Supply Code, 2005, directing that an application filed within 15 days be decided by a reasoned speaking order within 30 days. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE DEMAND NOTICE AND RECOVERY CITATION DATED 27.04.2018 FOR RS 80,025

¶ 1

NOT DECIDED — WHETHER THE ALLEGED ONE-TIME SETTLEMENT DEPOSIT ALREADY SATISFIED THE DUES

¶ 1

NOT DECIDED — WHETHER INSTALMENT FACILITY SHOULD BE GRANTED ON THE OUTSTANDING

Left to the authority under Code 6.14 ¶ 1